

Texas WIC Health and Human Services Commission

Effective April 1, 2026

Policy No. WV:02.0

Least Expensive Brand Declaration

Purpose

To improve vendor compliance with selling declared least expensive brand (LEB) food items, to promote cost-efficiency, and to reduce vendor/participant confusion when identifying LEB foods.

Authority

7 CFR Section 246.12

Policy

At the time of initial authorization, all vendors must declare their LEB for each type and size of the following WIC authorized foods for each vendor outlet:

- Milk
- Fluid and Frozen Juice
- Cheese

At least 85% of a vendor outlet's monthly WIC redemptions within each LEB food category must be the vendor outlet's declared LEB. Vendor outlets that do not redeem at least 85% of their declared LEB in each food category are subject to sanctions and termination of their Vendor Agreement. Vendors must label their declared LEBs with the State-agency (SA)-issued "WIC Approved Item" pink label or vendor-produced "WIC Approved Item" pink label approved by the SA.

Procedures

I. Declaring LEBs

- A. At the time of initial authorization, and any time thereafter, each vendor must declare their LEB foods by completing the LEB Declaration Form.
- B. Only one LEB Declaration Form is required if the LEBs are the same for all vendor outlets within one account. If the LEB(s) varies

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between vendor outlets, then the vendor applicant must submit an LEB Declaration Form for each individual vendor outlet within an account.

II. Labeling LEBs

- A. Vendors must ensure the "WIC Approved Item" pink labels are clearly placed, designating the appropriate LEB food items. Refer to [WV:01.0](#), Section XXI.C for LEB shelf labeling requirements.
- B. Vendors may choose to use the "WIC Approved Item" pink label for food items within a WIC approved food category that are non-LEB food items. If a vendor elects to use the pink label for food items within a WIC approved food category, the vendor must label every WIC approved food within that category. Selective or partial labeling within a category is not permitted.
- C. Infant formula is not an LEB item, and labeling with a "WIC Approved Item" pink label is not required. If a vendor chooses to label one contracted brand of infant formula, the vendor must label all contracted brands in all forms, including powder, concentrate, and ready to use.

III. Changing Declared LEBs

- A. Vendors must notify the SA of changes to its LEBs by submitting changes immediately. Failure to submit changes to LEBs could result in violations and sanctions. The newly declared LEB must be in the Authorized Product List (APL).
- B. Vendors must ensure that minimum stocking requirements (MSR) are maintained when adding or removing declared LEBs.

IV. LEB Compliance

- A. If a vendor outlet is out of stock of the declared LEB, the vendor outlet must sell the next least expensive brand of that food item available at that time. The next least expensive brand sold must be in the APL.

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- B. A vendor outlet's failure to have its declared LEB be at least 85% of its WIC redemptions in each of the applicable WIC LEB food categories during a process month may result in violations and sanctions. The SA will include the redemptions of non-LEB brand(s) sold at equal to or less than the unit price of the declared LEB in the final computation as part of meeting the 85% compliance requirement. At the SA's discretion, a vendor's wholesale supply issues, interim changes to a vendor outlet's LEB declarations within a review month, and/or low volume of WIC sales may result in sanctions being waived on a case-by-case basis.
- C. A vendor outlet's failure to label LEB food items appropriately may result in violations and sanctions.
- D. The SA may perform a review of a vendor outlet's compliance with selling its declared LEBs at any time during the term of the Vendor Agreement.
- E. For a description of violations and sanction schedules, see [WV:01.0](#) Section VI.T and Section VIII.D.
- F. A vendor who is actively working with the SA's EBT Operations Branch on changes to its WIC EBT point-of-sale system may be exempt from sanctions. To qualify for this exemption, the vendor must contact the SA in advance of the start of system modifications and submit a timeline for justification. It is at the SA's discretion to modify or terminate the exemption once approved.